

**Before the**  
**FEDERAL MARITIME COMMISSION**

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**DOCKET NO. 22-23**

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**Marine Transport Logistics, Inc. v. CMA CGM SA**

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**RESPONDENT’S MOTION TO COMPEL RESPONSES TO REQUEST FOR  
ADMISSIONS, INTERROGATORIES, REQUESTS FOR DOCUMENTS AND TO  
ORDER NEW ANSWERS TO REQUESTS FOR ADMISSION**

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CMA CGM SA (“Respondent” or “CMA”) hereby moves pursuant to 46 C.F.R. 502.147(a)(6) and 502.150 to compel Marine Transport Logistics, Inc. (“MTL” or “Complainant”) to respond to Interrogatories and Requests for the Production of Documents, and to provide new and sufficient answers to Requests for Admission, all as identified below. A Proposed Order is attached hereto. As required by the Commission’s Rules, Respondent has conferred with Complainant with respect to the instant Motion, to which Complainant objects.

**INTRODUCTION**

Given the strict schedule for discovery, including the deadline to complete depositions by January 19, 2024 and the close of discovery by February 16, 2024, Respondent seeks an Order to correct the deficiencies in Complainant’s discovery responses no later than January 8, 2024.

**BACKGROUND**

This proceeding was initiated by the service of an Amended Complaint on December 9, 2022. On February 2, 2023, Complainant served its Initial Disclosures on Respondent. **Attachment A.** On February 3, 2023, Respondent notified Complainant that its Initial

Disclosures did not comply with the requirements of FMC Rule 141(b)(3) (“An estimate of any damages claimed by the disclosing party who must also make available for inspection and copying the documents or other evidentiary material, unless privileged or protected from disclosure, on which the estimate is based, including materials bearing on the nature and extent of injuries suffered.”). In a reply dated February 6, 2023, Complainant’s counsel stated, “As to additional evidence of damages, at this point, there are text messages (in Russian).... Additionally, Alla Solovyeva [owner of MTL], will be available for a deposition on this and all issues that are the subject of the complaint, and MTL will supplement its response.”

**Attachment B.** Complainant produced documents on February 6, 2023. Also on February 6, 2023, Respondent served its initial discovery requests upon Complainant. **Attachment C.**<sup>1</sup> On March 9, 2023, Complainant produced another set of documents. **Attachment D.** However, neither production included the requested financial statements. After responses and production of documents were made on March 9, 2023, Respondent promptly advised Complainants of deficiencies on March 17, 2023. **Attachment E.**

Respondent produced documents on November 30, 2023, as required by the procedural schedule. Since March 9, 2023, MTL has produced no further document production or responses to Respondent’s discovery requests, nor has MTL provided translations of the Russian language text messages.

Complainant has made numerous good faith attempts to resolve these deficiencies by conferring informally with Respondent. After the revised deadline for the service of documents passed on November 30, 2023, Respondent sent to Complainant a slightly revised deficiency notice on December 12, 2023. **Attachment F.** Complainant replied on December

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<sup>1</sup> For the Certificates of Service that accompanied Respondent’s discovery requests, see Attachment C, pp. 7 and 22.

18, 2023. **Attachment G.** Respondent sent responses to Complainant's December 18 replies on December 20. **Attachment H.**

The Parties conferred on December 20, 2023 and agreed on tentative dates for the depositions of witnesses (January 12-15, 2024). Respondent offered to discuss stipulations as to facts, so as to narrow the requests, but Complainant adhered to its December 12 replies. When asked by Respondent if additional documents would be forthcoming, counsel for Complainant asserted that he did not intend to supplement MTL's production. When asked by Respondent what financial statements Complainant was relying upon, Complainant's counsel stated that deposition testimony from the president of the company was all that Complainant would be providing. *See* **Attachment I.**

The Parties again conferred on December 22, 2023 and were not able to come to agreement with respect to the majority of the outstanding issues. *See* **Attachment J.** Respondent informed Complainant's counsel that it would be filing the instant Motion to Compel. *Id.*

#### **SPECIFIC REQUESTS FOR DISCLOSURES, ADMISSIONS, INTERROGATORIES AND REQUESTS FOR DOCUMENTS**

In this section, CMA addresses the discovery requests as to which it seeks to compel adequate responses. Respondent's relevant requests and Complainant's written responses are set out verbatim and in full in **Attachment H.**

First, as a general matter, MTL has disclaimed sufficient information to admit or deny in its response to numerous questions but has not stated what steps it took to identify the relevant requested information. This is flatly contrary to the FMC's Rules of Practice & Procedure. See 46 C.F.R. 502.147(a)(4) (emphases added):

If a matter is not admitted, the answer must specifically deny it ***or state in detail why the answering party cannot truthfully admit or deny it***. A denial must fairly respond to the substance of the matter; and when good faith requires that a party qualify an answer or deny only a part of a matter, the answer must specify the part admitted and qualify or deny the rest. ***The answering party may assert lack of knowledge or information*** as a reason for failing to admit or deny ***only if the party states that it has made reasonable inquiry and that the information it knows or can readily obtain is insufficient to enable it to admit or deny***.

As a second general matter, MTL has objected to many of Respondent's requests on the basis of relevance to Complainant's claims. As set forth below, those requests are not only highly relevant but also necessary for Respondent's defenses to Complainant's claims, for which Respondent is entitled to obtain discovery, and without which it will be unable to present its defenses.

As a third general matter, MTL has produced several documents in Russian text with no translation. Respondent and counsel do not speak any Russian, much less speak it well enough to translate at the level of confidence required in a legal proceeding. Put simply, these documents are patently useless to Respondent without a translation from Complainant, which Complainant has steadfastly refused to provide. If no such translation is provided, Respondent will be required to obtain a translation during depositions, requiring additional hours.<sup>2</sup>

Respondent will now address Complainant's specific objections to its requests in turn:

#### **A. Requests for Admissions**

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<sup>2</sup> Moreover, 46 C.F.R. § 502.7 provides that, "Every document, exhibit, or other paper written in a language other than English and filed with the Commission or offered in evidence in any proceeding before the Commission under this part or in response to any rule or order of the Commission pursuant to this part, shall be filed or offered in the language in which it is written and shall be accompanied by an English translation thereof duly verified under oath to be an accurate translation."

**RFA 1.** A response to this request for admission is relevant to Respondent's ability to defend Complainant's allegation that its actions were unreasonable in light of the conditions that existed at the time, *i.e.*, that on or about February 24, 2022, a substantial conflict began between Ukraine and the Russian Federation that significantly affected commerce and transportation to/from Ukraine.

**RFAs 5, 6.** Responses to these requests are directly relevant to the merits of Complainant's claim and Respondent's defense as it relates to the reasons for which the loading of cargo may justifiably be delayed or denied. Complainant rests on the objection that these RFAs are vague, despite that Respondent has twice tailored its requests such that they can no longer be construed as vague.

## **B. Interrogatories**

**Interrogatories 4-19.** These requests are directly relevant to the issue of whether Complainant's experiences in 2022 were unusual, the portion of MTL's shipments that faced difficulties, which directly relates to the reasonableness of CMA's actions. Moreover, these requests are narrowly tailored to shipments made during the relevant time period.

**Interrogatories 20, 22, 23, 24, 26, 27, 28.** This information is directly relevant to MTL's experience with shipments to Ukraine during the specific time frame, which relates to the reasonableness of CMA's actions, namely, whether the alleged violations were "practices," as alleged by Complainant, or mere aberrations caused by the unanticipated and sudden closure of the port of destination. Moreover, since MTL is claiming it lost business due to CMA's alleged actions, MTL's communications and transactions with its customers is highly relevant because MTL's own actions/inactions might feasibly be the reason for lost profits, if any.

**Interrogatories 30, 31, 32, 33.** These interrogatories seek an explanation as to exactly how

MTL calculates its allegedly lost revenues, including what the “projections” are, who made the “projections,” on what basis, who calculated reputational loss, on what basis, and what specific documents support these claims – not vague references to unspecified, unlabeled documents. This information is highly relevant to MTL’s claims for lost profits. That MTL still refuses to respond to this interrogatory yet asserts that its witness will testify to these matters at deposition is especially egregious, since MTL has been aware of the deficiency and refused to correct it since CMA first identified this deficiency on March 17, 2023.

### **C. Requests for the Production of Documents**

**RFD 1.** MTL has produced no documents in response to, at minimum, Interrogatories 5, 20, and 33.

**RFD 2.** The foreign language documents produced by MTL do not have an English translation, as required by the Commission’s rules.

**RFD 3.** Complainant has produced only a fraction of what was requested by this RFD. Specifically, Complainant has provided no documents responsive to RFD3(a), (c), (d), (e), (f), (g), (h), or (k), and has only partially responded to (b), (i), (j), and (l). This request is highly relevant to Complainant’s claims, as it requests documentation directly related to the Subject Shipments identified in the Complaint.

**RFD 4.** Information related to claims, demands, or disputes that MTL has alleged against other VOCCs is highly relevant to the issue of whether MTL’s experience with Respondent was unusual, which relates to the reasonableness of CMA’s actions. This information is also necessary for Respondent to assert affirmative defenses set out in its Verified Answer.

**RFDs 5, 6.** MTL to date has produced no references to or copies of correspondence between any MTL shipper, consignee or notify party (or any other MTL customer) for each of the Subject Shipments. This information is highly relevant to MTL's claims that it lost customers as a result of the delay in the delivery of shipments to Ukraine and whether MTL's own actions or inactions were the cause of lost revenue, if any.

**RFD 7.** This information is highly relevant to MTL's claims that it lost customers as a result of the delay in the delivery of shipments to Ukraine and whether MTL's own actions or inactions were the cause of reputational damage, if any. These documents are necessary for Respondent's defense to Complainant's allegations of lost revenue.

**RFDs 8, 9.** This requested financial information is demonstrably highly relevant to Complainant's claims, as Complainant has alleged lost revenue as a result of Respondent's actions. Accordingly, Complainant has "opened the door" to assessment of its financial situation. Respondent requires financial information relating to Complainant's business during the relevant period in order to levy an adequate defense against allegations of lost revenue and reputational damages. This notwithstanding, Complainant's counsel has averred that deposition testimony from the president of MTL was all that Complainant would be providing. See **Attachment I** (email from Complainant's counsel stating: "While it is well-settled that 'tax returns in the possession of the taxpayer are not immune to civil discovery,' courts are cautious in ordering their production and have ordered such disclosure only upon satisfaction of a two-prong test: (1) relevance and (2) substantial need because the information is not otherwise readily available. (Citing *St. Regis Paper Co. v. United States*, 368 U.S. 208, 218-19 (1961)' Sabatelli v. Allied Interstate, Inc., CV05-3205 [ADS] (ARL) at 1 (E.D.N.Y. Sep. 13, 2006) [sic]. The court in Sabatelli went on to conclude: 'While the defendants' financial information is clearly

relevant to the issue of punitive damages, the second prong of this test has not been satisfied. Here, the information sought is otherwise readily available in that plaintiff may make inquiry during the depositions of these defendants as to this information. This deposition testimony should suffice to provide an adequate picture of defendants' financial status.' Id. at 2."

**RFDs 10, 11.** No privilege log has been provided. Complainant will withdraw these requests if a privilege log is produced by Respondent.

### **ARGUMENT**

FMC Rule 150 authorizes the Presiding Officer to compel a response where the responder fails to make a disclosure, answer, or respond, including an evasive or incomplete disclosure, answer, or response. Likewise, Rule 147(a)(6) mandates that the Presiding Officer order an answer to a request for admission where none has been provided and authorizes her to order that a new response be made to an insufficient response or that the request be deemed admitted.

As for Complainant's specific objection to providing financial statements on the grounds that deposition testimony would be sufficient to establish MTL's financial position, this objection is demonstrably specious and the precedent cited, inapposite. Respondent cites only one case, *Sabatelli v. Allied Interstate, Inc.*, in which the Plaintiff was seeking Defendants' financial records for the purposes of establishing liability for punitive damages. See **Attachment H**. However, *Sabatelli* is clear that this holding is limited to cases where financial "information [is] relevant *only to the issue of punitive damages*." *Sabatelli*, CV05-3205 (ADS) (ARL) at 3 (E.D.N.Y. Sep. 13, 2006) (citing *Collens v. City of New York*, 222 F.R.D. 249, 254 (S.D.N.Y. 2004)) (emphasis added). The very case Complainant cites

distinguishes itself – in this case, MTL is seeking “lost revenue and reputational damages,” which is obviously very different from the punitive damages claim in *Sabatelli*. Punitive damages claims require little more information than simply net worth; on the contrary, in this case, Respondent has demonstrated both relevance of and substantial need for financial statements, as Respondent is entitled to defend itself with respect to Complainant’s lost revenue and reputational damages claims. Complainant’s assertion that deposition testimony alone can substantiate a lost profits claim is baldly inaccurate and unsupported by even Complainant’s own case law.

As detailed *supra*, Complainant has provided insufficient responses to the enumerated requests for admission, interrogatories, and requests for production of documents. Complainant’s failure to adequately respond necessarily prejudices Respondent, especially in light of the compressed discovery schedule in this proceeding. Accordingly, the Presiding Officer should issue an order compelling Complainant to answer the above-identified interrogatories and requests for admission and respond in full by January 8, 2023, prior to witness depositions scheduled to take place January 9-15, 2024.

### **CONSULTATION**

As noted above, Respondent sent a notice of deficiencies on March 17, 2023. **Attachment C.** Respondent sent to Complainant a slightly revised list of deficiencies on December 12, 2023, to which Complainant replied on December 18, 2023. **Attachments D, E.** Respondent then replied to Complainant’s December 18 responses on December 20, 2023. **Attachment F.** The Parties conferred on December 20, 2023 and were able to agree on tentative dates for depositions, but Complainant requested additional time to review Respondent’s December 20, 2023 correspondence. The Parties again conferred on December

20, 2023, but were unable to reach an agreement with respect to the discovery deficiencies identified above. **Attachment G.**

Accordingly, Respondent respectfully requests that the Presiding Officer grant the instant Motion to Compel.

DATED: December 22, 2023

Respectfully submitted,

/s/ *Rebecca A. Fenneman*

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## **CERTIFICATE OF CONSULTATION AND ATTEMPTS TO CONFER**

I hereby certify that on December 20, 2023 and December 22, 2023, consultations and conferences were held with Complainant's counsel in an attempt to reach agreement with respect to the deficiencies in Complainant's its responses to Respondent's Initial Disclosures, Interrogatories, Requests for Production of Documents, and Requests for Admissions.

DATED: December 22, 2023

BY: /s/ Rebecca A. Fenneman

Rebecca A. Fenneman

Counsel for Respondent

### **CERTIFICATE OF SERVICE**

I hereby certify that on this 22<sup>nd</sup> day of December, 2023, a true and correct copy of the foregoing ***Motion to Compel and Attachments*** was served by email on all counsel of record in accordance with 46 CFR Part 502 and the Commission's Order of May 12, 2020.

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